

Om Prakash v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 27 February 2024 · 2024:AHC:34066-DB · WRIT - C No. 6215 of 2024 · **Petition disposed; clause 6.5 objection to be decided in three weeks.**

HEADNOTE

Writ to quash a bill-cum-disconnection notice disposed of on the electricity department's statement that the consumer's objection would be decided under clause 6.5 of the U.P. Electricity Supply Code, 2005. Authorities directed to decide the objection dated 08.02.2024 within three weeks; recovery under the notice to abide that decision.

FACTUAL SUMMARY

Om Prakash filed Writ-C No. 6215 of 2024 in the Allahabad High Court to quash a bill-cum-disconnection notice dated 26 June 2022. He had already lodged an objection dated 8 February 2024, placed on record as Annexure 4. The State of Uttar Pradesh and another respondent, the electricity department, were impleaded. At the hearing, counsel appearing for the electricity department stated that the petitioner's objection to the impugned bill would be decided under clause 6.5 of the Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · U.P. Electricity Supply Code, 2005, clause 6.5

pending billing objection

HOLDING

On the electricity department's statement that the objection to the bill would be decided under clause 6.5, the writ to quash the bill-cum-disconnection notice dated 26.06.2022 is disposed of with a direction that the authorities decide the objection dated 08.02.2024 within three weeks of communication of the order, together with a photocopy of the representation. Recovery of dues under the impugned bill and disconnection notice shall abide the decision of respondent No. 2. ¶ 2-3

PRINCIPLE TAGS

clause-6.5-pending-representation-to-be-decided The Court directed the authorities to decide the petitioner's objection dated 08.02.2024 under clause 6.5 within three weeks of communication of the order, recovery under the impugned notice to abide that decision. ¶ 2-3

alternate-remedy-clause-6.5 The writ for quashing the bill-cum-disconnection notice was disposed of without a merits finding, on the department's statement that the objection would be decided under clause 6.5. ¶ 2-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILL-CUM-DISCONNECTION NOTICE DATED 26.06.2022

Left to respondent No. 2 on the objection dated 08.02.2024 under clause 6.5. ¶ 1-3